



Intoxicating Substances (Supply) Act 1985

1985 CHAPTER 26

An Act to prohibit the supply to persons under the age of eighteen of certain substances which may cause intoxication if inhaled. [13th June 1985]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) It is an offence for a person to supply or offer to supply a substance other than a controlled drug—

Offence of
supply of
intoxicating
substance.

(a) to a person under the age of eighteen whom he knows, or has reasonable cause to believe, to be under that age; or

(b) to a person—

(i) who is acting on behalf of a person under that age; and

(ii) whom he knows, or has reasonable cause to believe, to be so acting,

if he knows or has reasonable cause to believe that the substance is, or its fumes are, likely to be inhaled by the person under the age of eighteen for the purpose of causing intoxication.

(2) In proceedings against any person for an offence under subsection (1) above it is a defence for him to show that at the time he made the supply or offer he was under the age of eighteen and was acting otherwise than in the course or furtherance of a business.

1982 c. 48.

(3) A person guilty of an offence under this section shall be liable on summary conviction to imprisonment for a term not exceeding six months or to a fine not exceeding level 5 on the standard scale (as defined in section 75 of the Criminal Justice Act 1982), or to both.

1971 c. 38.

(4) In this section "controlled drug" has the same meaning as in the Misuse of Drugs Act 1971.

Short title,
commence-
ment and
extent.

2.—(1) This Act may be cited as the Intoxicating Substances (Supply) Act 1985.

(2) This Act shall come into force at the end of the period of two months beginning with the day on which it is passed.

(3) This Act extends to Northern Ireland but not to Scotland.